

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

EDDIE SWAIN,

Respondent

) Case Number: FCS-23-356312

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY, AND RECONSIDERATION OF DENIAL OF
DVRO CCP 1008

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties are Respondent Eddie A. Swain (Father) and Other Parent Amy K. Adams (Mother).

The minor child subject to this proceeding is Iam King Swain (DOB: 06/30/21).

2) On December 15, 2026, the Court consolidated case numbers FDV-28-818716 and FDV-25-818532 into case number FCS-23-356312 (lead case).

3) On December 19, 2025, Father filed a Request for Order seeking modification of custody and reconsideration of the court's denial of his request for Domestic Violence Restraining Order (DVRO), under California Code of Civil Procedure section 1008. The Court notes the parties came before this Court on competing (i.e., mutual) restraining orders on November 6, 2025 and December 8, 2025. On December 12, 2025, the Court denied both competing requests for DVROs. However, the Court granted Father's request for joint legal and joint physical custody and gave Father parenting time on the 1st, 3rd and 5th weekends of each month from Friday at 5:00 p.m. – Monday morning drop-off at school.